

HOUSE BILL 2023

By Martin B

AN ACT to amend Tennessee Code Annotated, Section 40-24-109, relative to the victims assistance assessment.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-24-109, is amended by deleting subsection (c) and substituting instead the following:

(c) The clerks of all courts of general sessions, circuit and criminal courts, municipal courts exercising general sessions court jurisdiction, and any other court exercising similar criminal jurisdiction shall collect a victims assistance assessment in the sum of one hundred twenty-five dollars (\$125) from a person who:

- (1) Enters a plea of guilty;
- (2) Is found guilty by a judge or jury;
- (3) Enters a plea of nolo contendere;
- (4) Enters a plea, pursuant to a diversionary sentencing statute, to a criminal offense described in subsection (d);
- (5) Is found guilty, or enters a plea of guilty or nolo contendere, to the offense of attempting or conspiring to commit an offense described in subsection (d); or
- (6) Is found to be criminally responsible as principal for the commission of an offense described in subsection (d).

SECTION 2. Tennessee Code Annotated, Section 40-24-109(g)(1), is amended by deleting the subdivision and substituting:

(1) The victims assistance assessment is subject to § 8-21-401 and is in addition to all other taxes, costs, and fines. The first fifteen dollars (\$15.00) of each assessment must be paid to the clerk of the court imposing the assessment for processing and handling. The remaining one hundred ten dollars (\$110) must be transmitted to the county in which the offense occurred for the exclusive use of the victims assistance program previously designated by the county legislative body.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.